

Duty of disclosure memo

Inventors, assignees, and their legal representatives have an ongoing duty to provide the USPTO with information that is material to the examination of the application, in an Information Disclosure Statement (IDS).

Who has a duty of disclosure

U.S. “inventors”, as well as PCT “applicants”, by signing an oath pursuant to 37 CFR 1.63, are acknowledging that they understand and agree to comply with the duty of disclosure.

Attorneys or agents as well as assignees who participate in the preparation or prosecution of an application are also obligated to comply.

The duty does not extend to typists, clerks, or other persons not substantively involved. It also does not extend to organizations (such as institutions or corporations) but could extend to persons within an organization.

Foreign patent attorneys representing Applicants for U.S. patents through local correspondent firms surely must be held to the same standards of conduct which apply to their American counterparts, see MPEP 2001.06(a), quoting *Gemveto Jewelry Co. v. Lambert Bros., Inc.*, 542 F. Supp. 933, 216 USPQ 976 (S.D.N.Y. 1982).

In particular, if no information that is material to the examination of the present application is known at this time to inventors, assignees, their legal representatives and/or additional persons substantially involved in the prosecution of the present application, the duty can be considered fulfilled.

If instead, any material information not cumulative with information already of record is known to persons substantially involved in the prosecution of the present application, the duty would not be considered fulfilled.

Information material to patentability

Please note that, in principle, information is material when 1) it establishes by itself or in combination with other information, a *prima facie* case of unpatentability of a claim OR 2) it refutes or is inconsistent with a position the Applicant takes in a) opposing an argument for unpatentability put forth by the USPTO OR b) asserting an argument of patentability, see 37 CFR 1.56 (Rule 56) enclosed herewith.

Accordingly, material information may include but is not limited to documents cited in other applications, communications from other patent offices and any other information known to

Applicant(s) or any other person involved in the prosecution, if material to the examination of the present application and not cumulative with information already of record.

The *Therasense* decision (*Therasense, Inc. v. Becton, Dickinson & Co.*, 649 F.3d 1276 (Fed. Cir. 2011)) introduced the “but for” standard for materiality. In other words, material information is now more strictly defined as any non-cumulative information which, had it been disclosed prior to patent issuance, would have prevented the patent from issuing.

Failure to disclose information material to patentability

Failure to disclose material information known to the person substantially involved in the prosecution of the application and/or engaging in activities with an intent to deceive the USPTO can render a patent invalid or unenforceable as a consequence of inequitable conduct on the part of the individual who failed to provide the material information.

Having the material information on record on a related U.S. application different from the one at issue is neither necessary nor sufficient for compliance with the duty of disclosure for the application at issue, even if the related U.S. application is before the same examiner. The USPTO requires material information to be cited via IDS, even if already on record in a related application, see MPEP 2001.06(b) and *Mckesson Info. Solutions, Inc. v. Bridge Med., Inc.* (Fed. Cir. 2007).

The *Therasense* decision also changed the definition of “intent” and completely separated “intent” from “materiality”. In particular, in the *Therasense* opinion, the court specified that going forward inequitable conduct will require “specific intent” to deceive the USPTO: “the accused infringer must prove by clear and convincing evidence that the Applicant knew of the reference, knew that it was material, and made a deliberate decision to withhold it.”

Suggested course of action

Should any person substantially involved in the prosecution of the above-referenced patent application be aware of any information that might be material to its patentability, it is our advice and standard practice that in absence of a clear indication that the information is indeed not material to the patentability, or is cumulative with other information already of record, such information be submitted to the USPTO’s attention in an Information Disclosure Statement (IDS) to let the USPTO determine the materiality of the information, to minimize the chances that someone could later seek unenforceability of the patent based on inequitable conduct.

Regarding continuation applications (including divisional applications resulting from a USPTO Restriction Requirement and continuation-in-part applications), our advice and standard practice is to NOT file references that were properly cited in the parent application,

for example, patents, publications and non-patent literature. This practice is based on the understanding that each reference cited in an IDS by the Applicant or cited by the USPTO Examiner in a parent application will be considered by the USPTO Examiner in the continuing application, see MPEP 609.02 and MPEP 609.03. Note that for a reference to be printed on a patent issuing from a continuing application, the reference must be separately cited in an IDS by the Applicant or cited by the USPTO Examiner in the continuing application.

Some Applicant(s) may wish us to cite in an IDS in the continuation application each reference cited in an IDS by the Applicant or cited by the USPTO Examiner in a parent application. Upon such request we will deviate from our standard practice to accommodate the Applicant.

Note that there may be however some advantages in re-submitting, in a continuing application, references that were already properly cited in the parent application.

In particular, for a reference to be printed on a patent issuing from a continuing application, the reference must be separately cited in an IDS by the Applicant or cited by the USPTO Examiner in the continuing application.

Additional advantages can occur in post-grant proceedings and/or litigation scenarios, to ease the evidentiary burden on the patent proprietor's side in such proceedings. We will be pleased to provide you with additional information on such cases upon request.

In any case, it is our recommendation and our standard practice that any US parent application(s) priority of which is claimed in the continuation, divisional or continuation-in-part, be cited in the IDS of the latter for potential double patenting purposes. Additionally, it is our recommendation and our standard practice that a list of such parent applications also be provided to the USPTO under recent procedural changes of the USPTO to the 37 CFR 1.98(d) provisions.

IDS Size Fees

The USPTO has implemented a new IDS practice Effective January 19, 2025. Accordingly, the additional payment of a size fee will be required if the total number of documents submitted for an application exceeds 50, 100, or 200 (with increasing fees) and each IDS must include a statement about the current status of the application regarding this fee.

The size requirement resets for each new application but not for an RCE. Duplicate documents count separately unless resubmitted due to non-consideration in a previous IDS. The fee structure is cumulative, with previously paid fees deducted from new tier fees, and each threshold fee is only paid once, regardless of the number of IDS filed.

37 CFR §1.56 Duty to disclose information material to patentability (Rule 56)

(a) A patent by its very nature is affected with a public interest. The public interest is best served, and the most effective patent examination occurs when, at the time an application is being examined, the Office is aware of and evaluates the teachings of all information material to patentability. Each individual associated with the filing and prosecution of a patent application has a duty of candor and good faith in dealing with the Office, which includes a duty to disclose to the Office all information known to that individual to be material to patentability as defined in this section. The duty to disclose information exists with respect to each pending claim until the claim is cancelled or withdrawn from consideration, or the application becomes abandoned. Information material to the patentability of a claim that is cancelled or withdrawn from consideration need not be submitted if the information is not material to the patentability of any claim remaining under consideration in the application. There is no duty to submit information which is not material to the patentability of any existing claim. The duty to disclose all information known to be material to patentability is deemed to be satisfied if all information known to be material to patentability of any claim issued in a patent was cited by the Office or submitted to the Office in the manner prescribed by §§ 1.97(b)-(d) and 1.98. However, no patent will be granted on an application in connection with which fraud on the Office was practiced or attempted or the duty of disclosure was violated through bad faith or intentional misconduct. The Office encourages applicants to carefully examine:

- (1) Prior art cited in search reports of a foreign patent office in a counterpart application, and*
- (2) The closest information over which individuals associated with the filing or prosecution of a patent application believe any pending claim patentably defines, to make sure that any material information contained therein is disclosed to the Office.*

(b) Under this section, information is material to patentability when it is not cumulative to information already of record or being made of record in the application, and

- (1) It establishes, by itself or in combination with other information, a prima facie case of unpatentability of a claim; or*
- (2) It refutes, or is inconsistent with, a position the applicant takes in:*
 - (i) Opposing an argument of unpatentability relied on by the Office, or*
 - (ii) Asserting an argument of patentability.*

- (1) A prima facie case of unpatentability is established when the information compels a conclusion that a claim is unpatentable under the preponderance of evidence,*

burden-of-proof standard, giving each term in the claim its broadest reasonable construction consistent with the specification, and before any consideration is given to evidence which may be submitted in an attempt to establish a contrary conclusion of patentability.

(c) Individuals associated with the filing or prosecution of a patent application within the meaning of this section are:

- (1) Each inventor named in the application;*
- (2) Each attorney or agent who prepares or prosecutes the application; and*
- (3) Every other person who is substantively involved in the preparation or prosecution of the application and who is associated with the inventor, with the assignee or with anyone to whom there is an obligation to assign the application.*

(d) Individuals other than the attorney, agent or inventor may comply with this section by disclosing information to the attorney, agent, or inventor.

(e) In any continuation-in-part application, the duty under this section includes the duty to disclose to the Office all information known to the person to be material to patentability, as defined in paragraph (b) of this section, which became available between the filing date of the prior application and the national or PCT international filing date of the continuation-in-part application.